



The City of Ithaca, New York

Charter Revision Commission
Ithaca City Hall, 108 E. Green St.
Ithaca, NY 14850

Agenda for the April 16, 2026 Meeting of the Charter Revision Commission

Date: Thursday, April 16, 2026

Time: 6:00pm

Location: Ithaca City Hall, Third Floor
108 East Green Street
Ithaca, New York

Watch Online: <https://www.youtube.com/@CityofIthacaPublicMeetings>

1. Call to Order.

1.1. Emergency Evacuation Notice

2. Agenda Review.

3. Remarks by the Chair.

4. Hearing of the Public (no more than twenty minutes).

5. Process Presentation by the City Attorney's Office.

6. Hearing of Testimony.

6.1. Testimony of the Democratic Commissioner of Elections Mr. Stephen DeWitt.

6.1.1. Opening Statement (10 minutes)

6.1.2. Topic Questions Submitted by Commissioners from the Chair (20 minutes)

6.1.3. Questions by Commissioners (3 minutes each)

6.2. Testimony of the Acting City Manager Mr. Domnick Recckio.

6.2.1. Opening Statement (10 minutes)

6.2.2. Topic Questions Submitted by Commissioners from the Chair (20 minutes)

6.2.3. Questions by Commissioners (3 minutes each)



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7. Remarks & Questions for Mayor Robert Cantelmo.¹

8. Consent Calendar.

- 8.1. (Resolution No. 4) A Resolution to Add a Supremacy Clause and Local Powers Clause
- 8.2. (Resolution No. 5) A Resolution to Revise the Incorporation Clause
- 8.3. (Resolution No. 6) A Resolution to Amend the Provisions Governing the Election of City Court Judges To Reflect the Current Number of City Judges
- 8.4. (Resolution No. 7) A Resolution to Revise the Notice of Defect Provisions
- 8.5. (Resolution No. 8) A Resolution to Remove to the City Code the Sick Leave Provisions
- 8.6. (Resolution No. 9) A Resolution to Remove Duplicative Mentions of Common Council Meetings
- 8.7. (Resolution No. 10) A Resolution to Retitle the Offices of Acting Mayor and Alternate Acting Mayor as those of First Deputy Mayor and Second Deputy Mayor

9. Business Calendar.

- 9.1. (Resolution No. 11) A Resolution to Adjust Elections for the Office of Mayor and Member of the Common Council to Even Years to Follow the Pattern of the Tompkins County Legislature
- 9.2. (Resolution No. 12) A Resolution to Standardize and Establish a Process for Decennial Redistricting
 - 9.2.1. The Brock Amendment to Resolution No. 12
- 9.3. (Resolution No. 13) A Resolution to Comprehensively Revise Article IV on Taxation & Assessment
 - 9.3.1. The Brock Amendment to Resolution No. 13

¹ The placement of this item during the meeting is subject to change due to the Mayor's schedule.



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- 9.4. (Resolution No. 14) A Resolution to Authorize Board Member Alternates to Serve in Event of Conflict of Interest or Absence
- 9.5. (Resolution No. 15) A Resolution to Simplify References to Deputies
- 9.6. (Resolution No. 16) A Resolution to Place the Provisions Establishing the Fire and Police Departments Together
- 9.7. (Resolution No. 17) A Resolution to Authorize the Common Council to Establish Budget Priorities and a Maximum Levy Increase
 - 9.7.1. The Lederman Amendment to Resolution No. 17
- 9.8. (Resolution No. 18) A Resolution to Establish a Provision for the Adoption of a Budget for Instances in which the Common Council Fails to Adopt the City Manager's Proposed Budget
- 9.9. (Resolution No. 19) A Resolution to Cede Authority for the Discipline and Removal of Members of Boards, Committees, and Commissions to the Common Council
- 9.10. (Resolution No. 20) A Resolution to Create Appointment Deadlines for Mayor to Fill Vacancies on Boards
- 9.11. (Resolution No. 21) A Resolution to Enumerate Mayoral Powers in a Single Section of the Charter

10. Reports of the Working Groups.

- 10.1. The Elections Working Group
- 10.2. The Legislative Working Group
- 10.3. The Board & Commissions Working Group

11. Planning.

- 11.1. Immediate Actions
- 11.2. Meeting Schedule

12. Adjournment.



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Note on Public Comment: Not every citizen may find themselves able to attend the Public Comment section of the meeting. To submit written comments to the Charter Revision Commission, please [use this link](#). Written comments submitted will be compiled and entered into the record.



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Charter Revision Commission Resolution No. 4

A Resolution to Add a Supremacy Clause and Local Powers Clause

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to establish a Charter supremacy clause to indicate the charter's supremacy over "all inconsistent local laws, ordinance and resolutions" and City powers clause to indicate "the city shall have all powers granted upon it by the Constitution and the State of New York to cities of the same class" (i.e.: creation of sections §C-Xi and C-Xii in Article I).

Charter Revision Commission Resolution No. 5

A Resolution to Revise the Incorporation Clause

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to Article I §C-4 to strike existing language and replace it with a simplified, modernized "incorporation clause" to identify the municipality as an entity itself rather than as defined through its residents.

Charter Revision Commission Resolution No. 6

A Resolution to Amend the Provisions Governing the Election of City Court Judges To Reflect the Current Number of City Judges

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to update Article II, § C5A to reflect that there are two City judges and amend Article II § C10A to reflect current practice (the election of a judge for a 10-year term in a year ending in 5 or 0) OR simply refer to guiding NYS Courts procedure.

Charter Revision Commission Resolution No. 7

**A Resolution to Revise the
Notice of Defect Provisions**

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to Article VII §C-107 that:

- (1) Simplifies its language to the extent permissible;
 - (2) Explicitly states that a written notice of defect can be delivered in person, by certified mail, or by any other means formally designated by the city clerk for the delivery of such notices; and
 - (3) Conforms to General Municipal Law 50-E(4), 50-G, and any other relevant provisions of state law.
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Charter Revision Commission Resolution No. 8

**A Resolution to Remove to the
City Code the Sick Leave Provisions**

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of



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an amendment to move Article VII §C-109, which concerns sick leave of City employees, to the relevant portion of the City Code. (This amendment should include relevant transitional language.)

Charter Revision Commission Resolution No. 9

A Resolution to Remove Duplicative Mentions of Common Council Meetings

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article III §C-29 and §C-31 with a preference for removing §C-29, and combining any necessary language of substance into §C-31, including a provision allowing the use of email to serve notice calling for a special meeting of the Common Council.

Charter Revision Commission Resolution No. 10

A Resolution to Retitle the Offices of Acting Mayor and Alternate Acting Mayor as those of First Deputy Mayor and Second Deputy Mayor

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment revise Article III §C-33 that:

- (1) Establishes the role of First Deputy Mayor, in lieu of Acting Mayor;
- (2) Establishes the role of Second Deputy Mayor, in lieu of Alternate Acting Mayor;
- (3) Authorizes the First Deputy Mayor to step into the role of “Acting Mayor” if there is either a temporary or permanent vacancy in the Mayor's office, while retaining requirements for electoral certification of the new Mayor in the event that the Mayor's office has been permanently vacated;



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- (4) Indicates the Second Deputy Mayor may step into the role of Mayor if the First Deputy Mayor is not available, with the understanding that this person is “Acting Mayor”;
- (5) Makes clear that these roles are to be appointed by the Mayor from the existing members of the Council, with no extra compensation; but shall receive the Mayoral compensation in the event the Mayor permanently vacates the office and they are required to serve as Acting Mayor;
- (6) In the event that both the First Deputy and the Second Deputy become unavailable, a line of succession is thereafter determined by local law;
- (7) The Acting Mayor shall not be authorized to make appointments, unless the Mayor is absent or incapacitated for more than 30 days; and,
- (8) The Acting Mayor shall sign all necessary papers with the Mayor's name, adding thereto the words "Acting Mayor."

Charter Revision Commission Resolution No. 11

A Resolution to Adjust Elections for the Office of Mayor And Member of the Common Council to Even Years to Follow the Pattern of the Tompkins County Legislature

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article II § C-10 to establish that elections for Common Council members must be held in even years following the pattern of the coming change in County Legislature elections.

Charter Revision Commission Resolution No. 12

A Resolution to Standardize and Establish a Process for Decennial Redistricting

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article I § C-3 and Article II § C-8 to require a standardized decennial redistricting process following each census & establish that such redistricting must be done in accordance with New York State Law.

Proposed Amendment to Resolution No. 12

Moved By: Commissioner Brock

For: The April 16, 2026 Meeting

For: Resolution No. 12

1. The language to be amended as it is now written.

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article I § C-3 and Article II § C-8 to require a standardized decennial redistricting process following each census & establish that such redistricting must be done in accordance with New York State Law.

2. The proposed amendment. (Note: underlined text is new material to be added; [~~struck text~~] in brackets is old material to be deleted.)

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article I § C-3 and Article II § C-8 to require a standardized decennial redistricting process following each census & establish that such redistricting must be done in accordance with New York State Law, including provisions requiring:

- (1) Establishment of an Independent Redistricting Commission of nine (9) members,
- (2) Commissioners shall be nominated by the Mayor and approved by Common Council,
- (3) No currently serving elected municipal official, officer of any political party, or officer of any political committee shall be appointed as members of the Commission,
- (4) The members of the Commission shall be City residents, registered voters, and shall be knowledgeable about government and electoral processes.



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3. The language written as amended.

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article I § C-3 and Article II § C-8 to require a standardized decennial redistricting process following each census & establish that such redistricting must be done in accordance with New York State Law, including provisions requiring:

- (1) Establishment of an Independent Redistricting Commission of nine (9) members,
- (2) Commissioners shall be nominated by the Mayor and approved by Common Council,
- (3) No currently serving elected municipal official, officer of any political party, or officer of any political committee shall be appointed as members of the Commission,
- (4) The members of the Commission shall be City residents, registered voters, and shall be knowledgeable about government and electoral processes.

Proposed Amendment to Resolution No. 13

Moved By: Commissioner Brock

For: The April 16, 2026 Meeting

For: Resolution No. 13

1. The language to be amended as it is now written.

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of a comprehensive amendment to simplify and contemporize language in Article IV on Taxation & Assessment such that there may be the removal of archaic provisions, preempted language is replaced with short summaries of relevant state provisions, short budget process and lien/fee authority sections are retained, and local penalty structures or installment programs are retained in city governance documents by moving them to the code where permissible. (This amendment should include relevant transitional language.) (§§C-39-54)

2. The proposed amendment. (Note: underlined text is new material to be added; [~~struck text~~] in brackets is old material to be deleted.)



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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of a comprehensive amendment to simplify and contemporize language in Article IV on Taxation & Assessment such that there may be the removal of archaic provisions, preempted language is replaced with short summaries of relevant state provisions, short budget process and lien/fee authority sections are retained, retaining limits to borrowing in anticipation of tax revenue to no more than one year, and local penalty structures or installment programs are retained in city governance documents by moving them to the code where permissible. (This amendment should include relevant transitional language.) (§§C-39-54)

3. The language written as amended.

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of a comprehensive amendment to simplify and contemporize language in Article IV on Taxation & Assessment such that there may be the removal of archaic provisions, preempted language is replaced with short summaries of relevant state provisions, short budget process and lien/fee authority sections are retained, retaining limits to borrowing in anticipation of tax revenue to no more than one year, and local penalty structures or installment programs are retained in city governance documents by moving them to the code where permissible. (This amendment should include relevant transitional language.) (§§C-39-54)

Charter Revision Commission Resolution No. 13

A Resolution to Comprehensively Revise Article IV on Taxation & Assessment

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of a comprehensive amendment to simplify and contemporize language in Article IV on Taxation & Assessment such that there may be the removal of archaic provisions, preempted language is replaced with short summaries of relevant state provisions, short budget process and lien/fee authority sections are retained, and local penalty structures or installment programs are retained in city governance documents by moving them to the code where permissible. (This amendment should include relevant transitional language.) (§§C-39-54)



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Charter Revision Commission Resolution No. 14

A Resolution to Simplify References to Deputies

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise Article II §C-5 such that it simply reads “Officers who serve as the deputies or assistant department heads of their respective departments, and who are appointed by their respective department heads,” with references to specific deputies are removed, providing City Manager and Department Heads flexibility with internal organization & Revise Article II §C-22B such that the phrase “as defined in §C-5C(5)” is removed for the sake of consistency, with the understanding that Deputy positions will still continue to be governed by the civil service, appropriations, and rostering processes.

Charter Revision Commission Resolution No. 15

A Resolution to Authorize Board Member Alternates to Serve in Event of Conflict of Interest or Absence

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to remove §C-5(f)(3) and revise §C-5(f)(4) to allow alternates to serve when members are unable to act because of a conflict of interest or absence.

Charter Revision Commission Resolution No. 16

A Resolution to Place the Provisions Establishing the Fire and Police Departments Together

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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise the placement of the Police & Fire Departments by moving them to the appropriate Article in the charter alongside other departments, providing the movement of said departments does not conflict with any union contracts or regulations specific to these departments.

Charter Revision Commission Resolution No. 17

**A Resolution to Authorize the Common Council to Establish
Budget Priorities and a Maximum Levy Increase**

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment authorizing the Common Council to pass a resolution establishing budget priorities and amounts of maximum levy change, and further authorizing the Mayor to submit such priorities and amounts of maximum levy change to the City Manager should the Common Council fail to establish such priorities. These priorities shall apply to the budget submitted to Common Council by the City Manager but shall not be binding on the final budget or tax cap increase adopted by Common Council (§ C-X).

Proposed Amendment to Resolution No. 17

Moved By: Commissioner Lederman

For: The April 16, 2026 Meeting

For: Resolution No. 17

1. The language to be amended as it is now written.

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment authorizing the Common Council to pass a resolution establishing budget priorities and amounts of maximum levy change, and further authorizing the Mayor to submit such priorities and amounts of maximum levy change to



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the City Manager should the Common Council fail to establish such priorities. These priorities shall apply to the budget submitted to Common Council by the City Manager but shall not be binding on the final budget or tax cap increase adopted by Common Council (§ C-X).

2. The proposed amendment. (Note: underlined text is new material to be added; ~~[struck text]~~ in brackets is old material to be deleted.)

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment authorizing the Common Council to pass a resolution establishing budget priorities and amounts of maximum levy change, and further authorizing the Mayor to submit such priorities and amounts of maximum levy change to the City Manager should the Common Council fail to establish such priorities. These priorities shall apply to the budget submitted to Common Council by the City Manager but shall not be binding on the final budget or tax cap increase adopted by Common Council. The Mayor shall coordinate and monitor the development of the proposed budget to ensure the proposed budget reflects the adopted maximum levy change and budget priorities. (§ C-X).

3. The language written as amended.

BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment authorizing the Common Council to pass a resolution establishing budget priorities and amounts of maximum levy change, and further authorizing the Mayor to submit such priorities and amounts of maximum levy change to the City Manager should the Common Council fail to establish such priorities. These priorities shall apply to the budget submitted to Common Council by the City Manager but shall not be binding on the final budget or tax cap increase adopted by Common Council. The Mayor shall coordinate and monitor the development of the proposed budget to ensure the proposed budget reflects the adopted maximum levy change and budget priorities. (§ C-X).

Charter Revision Commission Resolution No. 18

A Resolution to Establish a Provision for the Adoption of a Budget for Instances in which the Common Council Fails to Adopt the City Manager's Proposed Budget



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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to establish a provision that, in the event that the Common Council does not adopt a budget by the state mandated timeline, that the final City Manager submitted budget be adopted as the budget for the next fiscal year (§ C-X).

Charter Revision Commission Resolution No. 19

A Resolution to Cede Authority for the Discipline and Removal of Members of Boards, Committees, and Commissions to the Common Council

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise § C-5 by delineating disciplinary measures for members of boards, committees, and commissions, providing:

- (1) A two-thirds majority vote from council;
 - (2) Council shall be empowered to establish rules and procedures for such proceedings;
 - (3) Such actions shall only be taken upon formal charges be served;
 - (4) Said officer is granted a reasonable opportunity to be heard in their defense in accordance with the values of due process protections; and
 - (5) Such disciplinary powers shall supersede other provisions elsewhere in the Charter (§ C-5)
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Charter Revision Commission Resolution No. 20

A Resolution to Create Appointment Deadlines for Mayor to Fill Vacancies on Boards



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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to revise §C-5(c)(1) whereby the Mayor shall appoint with the advice and consent of the Council, the Members of citizen advisory boards and commissions including alternates by March 31st. If the Mayor is unable to do so, the Council shall appoint the remainder of the needed members to maintain quorum by July 31st.

Charter Revision Commission Resolution No. 21

**A Resolution to Enumerate Mayoral Powers
in a Single Section of the Charter**

For Consideration at the April 16, 2026
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BE IT RESOLVED, the Commission requests the Office of the City Attorney either draft language for or provide a written explanation as to the technical or legal reasons hindering the adoption of an amendment to reorganize and aggregate all mentions of the Mayor's powers and duties into § C-11 in a more readable and streamlined format.



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MEMORANDUM

From: Billy Noseworthy, chair
To: Commissioners
Date: April 16, 2026
Subject: Revised Schedule of Commission Meetings

Dear Commissioners:

With gratitude for their service, we appreciate commissioners being willing to make space for extra meetings in May and June.

Billy Noseworthy
Chair